

FOSTER v IRBC 2 PROPERTIES, LLC

21CV45573

**PLAINTIFF'S AMENDED MOTION TO COMPEL
FURTHER DISCOVERY RESPONSES**

Plaintiff Larry Foster brings a motion to compel further responses to discovery.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Furthermore, the motion purports to be one compelling multiple types of discovery. However, each set of discovery requires its own motion to compel. Plaintiff is on notice of this requirement.

Based on the foregoing, the motion is **DENIED**, WITHOUT prejudice to refile.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

CONNOLLY v DE LA CRUZ

23CV46549

**PLAINTIFF'S MOTION TO STRIKE AFFIRMATIVE DEFENSES
AND DEEM REQUESTS ADMITTED**

This civil action stems from a dispute over easement rights between Mark V. Connolly ("Plaintiff") and Francisco de la Cruz ("Defendant"). On July 22, 2024, the Court ordered Defendant to provide detailed and specific verified responses to Plaintiff's Request for Production of Documents, Form Interrogatories, and Special Interrogatories. The Order required a response within thirty (30) days.

Now before the Court is Plaintiff's Motion to 1) Strike Affirmative Defenses, 2) Deem Requests for Admissions Admitted or in the Alternative for Terminating Sanctions.

As to Form Interrogatories 15.1 and 17.1, Plaintiff asserted that the responses were not code compliant because they were not full and complete and refer to other discovery provided elsewhere. The Court agreed, and in its July 22, 2024 Order stated:

Defendant is ordered within 30 days to provide an individual responsive answer providing the required information as to each of its three subparts of Form Interrogatory 15.1 as to each affirmative defense without reference to other discovery responses or an instruction to search the public record.

Defendant is ordered within 30 days to provide an individual responsive answer providing the required information as to each of its four subparts of Form Interrogatory 17.1 as to each of the 24 denied Requests for Admission without reference to other discovery responses or an instruction to search the public record.

Defendant submitted supplemental responses which Plaintiff continues to deem inadequate and non-compliant.

The Court agrees with Plaintiff that the supplemental responses are in a format that is less than exemplary. However, the Court also agrees with the Defendant that he has provided a substantial amount of information and exhibits. In the interests of justice, substance should be elevated over form and the Court finds that Defendant has substantially complied with the Court's July 22, 2024 Order.

Accordingly, Plaintiff's motion is **DENIED** and sanctions are **DENIED** to each party.